Defence (Regular Force) (Officers) (Amendment) Regulations, 2024 (No. 5)

IT is hereby notified that the Minister of Defence, in terms of section 113 of the Defence Act [*Chapter 11:02*], and after consultation with the Defence Forces Service Commission, has made the following regulations:–

1. These regulations may be cited as the Defence (Regular Force) (Officers) (Amendment) Regulations, 2024 (No. 5).

2. These regulations shall come into effect on the 1st January, 2025.

3. The Defence (Regular Force) (Officers) Regulations, 2016, published in Statutory Instrument 152 of 1988, are amended in section 15 ("Retirement") by the repeal of subsections (4), (5), (6) and (7) and the substitution of—

"(4) A permanent service officer shall, whatever the length of his or her pensionable service, retire on attaining the age of fifty-five years:

Provided that—

(a) if the Minister, on the recommendation of the Commander, considers that it is desirable in the public interest, he or she may allow that officer to continue to serve for a period of five years until he or she attains the age of sixty years; or

(b) if that officer is allowed to continue to serve in terms of paragraph (a), the Commander may, on giving twelve months' written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(5) A permanent service officer who has continued to serve in terms of subsection (4) shall retire on attaining the age of sixty years:

Provided that—

(a) if the President, on the recommendation of the Minister, considers that it is desirable in the public

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

interest, he or she may allow that officer to continue to serve for a period of five years until he or she attains the age of sixty-five years; or

(b) if that officer is allowed to continue to serve in terms of paragraph (a), the Commander may, on giving twelve months' written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(6) A permanent service officer who has continued to serve in terms of subsection (5) shall retire on attaining the age of sixty-five years:

Provided that—

(a) if the President, on the recommendation of the Minister, considers that it is desirable in the public interest, he or she may allow an officer who is a war veteran to continue to serve for a period of five years until he or she attains the age of seventy years; or

(b) if that officer is allowed to continue to serve in terms of paragraph (a), the Commander may, on giving twelve months' written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(7) A permanent service officer who has continued to serve in terms of proviso (a) of subsection (6) shall retire on attaining the age of seventy years.

(8) A permanent service officer appointed before the effective date on pensionable terms of service shall have a pensionable age of sixty-five years unless the member elects to retire at seventy years of age and any retirement before the elected pensionable age of seventy shall be deemed to be early retirement.".

4. The Defence (Regular Force) (Officers) (Amendment) Regulations, 2016 (No.7), published in Statutory Instrument 50 of 2016, are hereby repealed.